Congress quiz: cram sheet

Key ideas

1. House: 2-year terms, age 25, citizen 7 years, elected directly by the people, seats by population (435 members).
2. Senate: 6-year terms, age 30, citizen 9 years, two per state (100 members), chosen by **state legislatures** until 1913.
3. Checks: know the chart, especially the Supreme Court (president nominates, Senate approves, judicial review) and treaties (two-thirds of senators present).
4. Both houses by population is the Virginia Plan, not the Constitution.

House vs. Senate

	House of Representatives	Senate
Term	2 years; the whole House is up every election	6 years; one-third up every 2 years (the first classes served 2, 4 and 6)
Age and citizenship	At least 25; a citizen for 7 years; lives in the state	At least 30; a citizen for 9 years; lives in the state
Elected by	The people, directly	State legislatures until the Seventeenth Amendment (1913); the people since
Representation	By population; 435 voting members	Equal: two per state; 100 members

The checks chart

	The legislature can	The executive can	The judiciary can
Legislative powers	**Make laws**	Veto legislation; recommend legislation	Review legislative acts
Executive powers	Confirm executive appointments (Senate); override an executive veto; reject foreign treaties	**Enforce laws**	Review executive acts; issue injunctions
Judicial powers	Impeach; create or eliminate courts	Grant pardons; nominate judges	**Interpret laws**

The other offices

President	4-year term; chosen by the Electoral College
Federal judges	The president nominates, the Senate approves; they serve for life

Supreme Court and treaties

Judicial review	1803 Marbury v. Madison: the Court can strike down laws, actions and treaties
Checks on the Court	Senate approval, impeachment, creating or eliminating courts, amendments
Treaties	The president signs; two-thirds of senators present consent; the president ratifies
Vice president	Breaks ties only, so never decides a two-thirds vote

Don't mix these up

Virginia Plan	Both houses by population; the Constitution made only the House proportional
Three-fifths	Free population plus three-fifths of the enslaved population, for House seats and direct taxes
Impeach vs. remove	The House impeaches by majority; the Senate removes with two-thirds
Majority vs. two-thirds	Majority: bills and confirmations. Two-thirds: treaties, overrides and convictions